

HOUSE No. 2005

The Commonwealth of Massachusetts

PRESENTED BY:

Alyson M. Sullivan-Almeida

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote correctional personnel safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>1/16/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>4/30/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>4/30/2025</i>

HOUSE No. 2005

By Representative Sullivan-Almeida of Abington, a petition (accompanied by bill, House, No. 2005) of Alyson M. Sullivan-Almeida relative to penalties for persons confined to correctional facilities who commit assault or assault and battery by means of dangerous weapons upon officers, other employees, volunteers or employees of contractors. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1773 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote correctional personnel safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 38B of chapter 127 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following subsection:-

3 (d) Any person in the custody of a correctional facility, including any jail, house of
4 correction, trial court detention facility or state prison, who commits an assault or an assault and
5 battery by means of a dangerous weapon upon an officer or other employee, any volunteer or
6 employee of a contractor in any such facility or any duly authorized officer or other employee of
7 any such facility engaged in the transportation of a prisoner for any lawful purpose shall be
8 punished by imprisonment for not more than 2 and one-half years in a jail or house of correction
9 or for not more than 20 years in a state prison. Such sentence shall begin from and after all

- 10 sentences currently outstanding and unserved at the time of said assault or assault and battery.
- 11 For purposes of this subsection, “dangerous weapon” shall include objects that are designed or
- 12 intended to be used as a weapon, including those objects that are custom or homemade.